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Case Number: 26STCV08967 Hearing Date: August 4, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Motion to Quash Service of Summons

Defendant Ashley Liu's Motion to Quash

Service of Summons is granted.

BACKGROUND

Plaintiff Weishi Yang (Plaintiff) filed this action against Ashley Liu (Liu) and Carol Xu aka Jiayin Xu, alleging that he holds written assignments from five people who sent Chinese currency to accounts the defendants designated and never received the dollars they were promised.

The causes of action are: (1) Breach of Written Agreement; (2) Money Had and Received; (3) Fraudulent Misrepresentation; (4) Negligent Misrepresentation; (5) Promissory Fraud; (6) Conversion; and (7) Unjust Enrichment.

Liu filed a Motion to Quash Service of Summons. Plaintiff filed an Opposition.

EVIDENTIARY OBJECTIONS

Plaintiff lodges five objections to the Declaration of Barry L. Greenhalgh filed with the Motion and to two exhibits.

1.

Sustained. Hearsay. (Evid. Code, § 1200.)

2.

Sustained. Improper opinion. (Evid. Code, § 800.)

3.

Sustained. Improper opinion. (Evid. Code, § 800.)

4.

The Court declines to rule. Exhibit B is secondary commentary offered as argument, and the Court does not rely on it.

5.

Sustained. Lacks foundation. (Evid. Code, § 702.)

Counsel establishes that he printed the search results, not that the searches he ran would have located a registration that exists.

LEGAL STANDARD

A defendant may move, on or before the last day to plead, “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444 (Dill).) A defendant is under no duty to act upon a defectively served summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.) When a defendant challenges jurisdiction by bringing a motion to quash, “the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Dill, supra, 24 Cal.App.4th at pp. 1439-1440.)

ANALYSIS

The service at issue is undisputed. On April 24, 2026, Michael Rodgers, a registered California process server, left the summons and complaint with Lupe Lopez, the manager of The UPS Store at 122 East Foothill Boulevard, Unit 126, Arcadia. (Mot., Ex. A.) Liu had rented Box 126 at that store, and her rental agreement ended in January 2025. (Liu Decl. at p. 2:1-2.) On the return, Mr. Rodgers checked box 5b(3), the box for service at a usual

mailing address where the physical address is unknown, described Ms. Lopez as the manager of a mail receiving agency where the recipient holds a box, left box 5b(5) unchecked, and wrote at item 5d that he served a mail receiving agency under Code of Civil Procedure section 415.20 and placed the documents for mailing. (Mot., Ex. A, items 5b, 5b(3), 5b(5), 5d.) No one attempted to serve Liu anywhere else.

I. Substituted Service

A. Reasonable Diligence

Liu argues that no one attempted personal service before the process server went to The UPS Store, and that no declaration of diligence accompanies the return. (Mot. at p. 2:23-3:3; Reply 4:14-17.)

Code of Civil Procedure section 415.20, subdivision (b), permits substituted service at a dwelling house, usual place of abode, usual place of business, or usual mailing address only where the summons and complaint “cannot with reasonable diligence be personally delivered to the person to be served.” Ordinarily, “two or three attempts at personal service at a proper place and with correct pleadings should fully satisfy the requirement of reasonable diligence and allow substituted service to be made.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 373 (Kremerman).) Section 415.20, subdivision (c), governs private mailboxes and states a different condition: “Notwithstanding subdivision (b), if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency [CMRA], service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the [CMRA] in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code.”

Plaintiff rests the Opposition on subdivision (c) and on the absence of any diligence requirement within it, and the entries on the return invoke that subdivision. (Opp. 5:7-24; Mot., Ex. A, items 5b(3), 5d.) Where subdivision (c) applies, one delivery attempt suffices, and neither the unchecked box 5b(5) nor the missing declaration of diligence would defeat the service. Liu’s argument, so far as it assumes that a plaintiff must always attempt personal delivery before leaving process with a CMRA, reads subdivision (b)’s condition into a subdivision that operates notwithstanding

it.

Kremerman holds nothing to the contrary. The court considered both routes to substituted service and found the service defective under each. Measured against Code of Civil Procedure section 415.20, subdivision (b), the plaintiff's attempts showed no reasonable diligence, because the first nonservice report described attempts to serve unlawful detainer pleadings rather than the summons and complaint in the contract action, and the second described a stakeout at a property the defendant had vacated six months earlier. (Kremerman, *supra*, 71 Cal.App.5th at pp. 372-373.) The proof of service compounded the problem by reciting that the papers were left with a competent member of the household at the defendant's dwelling house or usual place of abode, when the recipient was a Postal Annex employee, and the Postal Annex was neither. (*Id.* at p. 373.) Section 415.20, subdivision (c), was independently unavailable, because the plaintiff knew the defendant's home address, which appeared on exhibits to his complaint and in the third nonservice report. (*Ibid.*) The diligence discussion in Kremerman therefore measures attempts under subdivision (b), and subdivision (c) imposes no requirement of prior attempts.

B. Reasonable Knowledge

Liu argues that no one made any effort to locate her, and that a mailbox cannot be the only address reasonably known to Plaintiff where no effort was made to find another. (Mot. at p. 5:3-7; Reply 6:4-7.)

Subdivision (c) opens with a condition: the private mailbox must be "the only address reasonably known for the person to be served." A plaintiff whose jurisdiction is challenged must prove the facts requisite to effective service, and the facts that bring the service within the subdivision he invokes are among them. (Dill, *supra*, 24 Cal.App.4th at pp. 1439-1440.)

Subdivision (c) does not ask what the plaintiff knew. It asks what was "reasonably known," and the qualifier would be surplus if the subdivision turned on the plaintiff's actual knowledge alone. Elsewhere in the same section, the Legislature conditioned service at a mailing address on whether a physical address "is known," without the qualifier. (Code

Civ. Proc., § 415.20, subd. (a).) A plaintiff who has looked for nothing else cannot say that a mailbox was the only address reasonably known to him, because he does not know what looking would have shown.

Substituted service under subdivision (b)

already reaches a private mailbox at a CMRA, because a usual mailing address “other than a United States Postal Service post office box” includes a commercial box.

(Ellard v. Conway (2001) 94 Cal.App.4th 540, 545-546 (Ellard).)

A plaintiff taking that route must first attempt personal delivery with reasonable diligence, ordinarily two or three times. Subdivision (c) excuses those attempts for the plaintiff whose knowledge of the defendant's whereabouts is confined to the mailbox itself. The excuse and the condition go together.

What justifies serving a mail drop on the first try is that the search for the defendant has already been made and has turned up nothing else. Reading subdivision (c) to excuse the search as well would give the plaintiff who learns the least the shortest route to service.

Here, the evidence of what Plaintiff knew

consists of one sentence in his counsel's declaration stating that Plaintiff does not know Liu's address and that counsel's firm hired Mr. Rodgers to obtain her mailing address through a skip trace. (Khojayan Decl., ¶ 2.) Counsel does not state how he knows what his client knows, and a witness may testify only to matters within his personal knowledge. (Evid. Code, § 702, subd. (a).) The declaration is equally silent about the search. Counsel engaged the process server to locate a mailing address, and the process server produced one.

Nothing describes an effort to locate Liu's residence, her place of business, or any location where she could be served with the papers, and the return describes no attempt to serve her anywhere other than the UPS Store counter.

(Mot., Ex. A, items 5b, 5d.) The standard is not exacting. Ellard did not require the plaintiffs there to “exhaust all avenues of obtaining a current address.” (Ellard, supra, 94 Cal.App.4th at p. 545.) Far from exhausting all avenues, Plaintiff fails to show that any effort was made to find a physical address.

Plaintiff asks the Court to treat Liu's

silence as proof of the condition. That Liu has not identified a home address, and has not asserted that Plaintiff knew one, is not evidence that a reasonable search would have found nothing, and the burden of proving the facts requisite to effective service rests with Plaintiff. (Dill, supra, 24

Cal.App.4th at pp. 1439-1440.) The plaintiff in Kremerman knew the

defendant's home address, as discussed above, and subdivision (c) was therefore unavailable to him. That actual knowledge of another address defeats the condition does not mean that ignorance establishes it.

The Court concludes that Plaintiff has not proved that Liu's box at The UPS Store was the only address reasonably known to him, and that Code of Civil Procedure section 415.20, subdivision (c), did not authorize this service. Subdivision (b) governed instead, and the single delivery to Ms. Lopez, preceded by no attempt at personal delivery anywhere, did not satisfy it.

II. Private Mailbox Service

Even assuming that the mailbox was the only address reasonably known to Plaintiff, the service was never perfected. Liu argues that the return cannot show what The UPS Store did with the papers after the process server left, that no certificate of mailing exists, and that Plaintiff never inquired. (Mot. at p. 5:14-6:6; Reply 3:12-4:5.)

Code of Civil Procedure section 415.20, subdivision (c), permits service at a CMRA only "in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code." Business and Professions Code section 17538.5, subdivision (d)(1), directs the CMRA, upon receipt of process for a mailbox customer, to place a copy of the documents or a notice in the customer's mailbox within 48 hours unless the service was previously terminated, and, "within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer." The CMRA "shall obtain a certificate of mailing in connection with the mailing of the documents," and "[s]ervice of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing." (Bus. & Prof. Code, § 17538.5, subd. (d)(1).) Delivery to the CMRA opens the sequence. The mailing perfects the service and fixes the date from which the ten days run.

Here, Liu's rental agreement ended in January 2025, and the process server delivered the papers in April 2026, more than a year later. (Liu Decl. at p. 2:1-2.) The statutes anticipate that sequence. A CMRA must accept service for its customers "and for two years after termination of any mail receiving service customer agreement," and the customer's written authorization runs "until two years after my mail receiving service has

been terminated.” (Bus. & Prof. Code, § 17538.5, subds. (d)(1), (f).) A box closed within the preceding two years therefore remains a private mailbox obtained through a CMRA within the meaning of Code of Civil Procedure section 415.20, subdivision (c), and remains a proper place to leave a service of summons. Business and Professions Code section 17538.5, subdivision (d)(1), excuses the CMRA from placing documents in the box where “the mail receiving service for the customer was previously terminated.” However, it does not remove the obligation to mail them within five days. Service of process is then perfected 10 days after the mailing date. (Bus. & Prof. Code, § 17538.5, subds. (d)(1).)

Kremerman confirms this reading.

Listing the defects in the service before it, the court identified the CMRA’s 48-hour placement and five-day mailing as what “California law requires,” citing Code of Civil Procedure section 415.20, subdivision (c), together with Business and Professions Code section 17538.5, subdivision (d)(1), and then wrote: “There is no evidence in the judgment roll that indicates whether the referenced statutory requirements were met.” (Kremerman, *supra*, 71 Cal.App.5th at p. 373.) Turning to the record the plaintiff had made in the trial court, the court found that The UPS Store employee placed the documents in the customer’s box the day they arrived, within the 48 hours the statute allows, but mailed them twenty days after receipt, and held that the trial court had erred in concluding that the service was proper. (*Id.* at p. 374.) The mailing is therefore a requirement of the service and not the CMRA’s internal housekeeping, and it is the act that perfects the service even where the papers reach the box on time.

Here, the record says nothing about that mailing. The return describes one delivery and three mailings, all by Mr. Rodgers, and each mailing went to The UPS Store’s address. (Mot., Ex. A, items 5b(4), 5c, 5d.) None is the mailing to the customer’s last known home or personal address that the statute requires. The return is silent on whether The UPS Store mailed the papers to Liu and whether it obtained a certificate of mailing, and Evidence Code section 647 presumes the facts a registered server states in his return, not the later acts of a third party the server neither witnessed nor described. Plaintiff filed no declaration from The UPS Store and no certificate of mailing.

III. Actual

Notice

Plaintiff argues that Liu learned of the case, retained counsel, and filed this motion, and that courts construe the service statutes liberally where the defendant knows of the suit. (Opp. 3:16-19, 4:5-7, 7:8-9.) Code of Civil Procedure section 418.10, subdivision (d), gives a defendant this motion so that she may contest jurisdiction without submitting to it. It follows that the filing of the motion establishes nothing about the service that preceded it. Our Supreme Court held that the service statutes should be “liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” (Pasadena Medi-Center Associates v. Superior Court (1973) 9 Cal.3d 773, 778.) That principle has a limit. A defendant’s knowledge of the lawsuit is not a substitute for proper service and does not confer jurisdiction, and no California appellate court has upheld service based on actual notice alone where the plaintiff failed to comply with the service statutes. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 392 (American Express).)

To the extent that Plaintiff suggests that the fact that Liu filed the instant motion proves that The UPS Store complied with the 5-day mailing requirement, that assumption is inconsistent with the evidence. Liu declares that no one other than her attorney has contacted or visited her regarding this lawsuit, and that she knows of no attempt to serve her other than what her attorney showed her. (Liu Decl. at p. 2:6-10.) Her counsel declares that, after the dismissal of a prior case involving the same parties, Plaintiff’s counsel advised him that a new lawsuit would be filed, that he found the new filing on the court’s website, had the pleadings copied, and telephoned his client. (Greenhalgh Decl. at p. 3:12-15.)

Because Plaintiff fails to show that Liu’s mailbox at The UPS Store was the only reasonably known address, and alternatively because he fails to show that The UPS Store complied with the five-day mailing requirement, the Motion is granted.

CONCLUSION

Ashley Liu’s Motion to Quash Service of Summons is granted.